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Section 21C: Limitations on total taxes assessed; determination by voters

Section 21C. (a) Whenever used in the text of this section, the following words and terms shall have the following meanings:—

"Full and fair cash valuation", the fair cash value of all real estate and personal property as defined in this chapter, as certified by the commissioner, or, if no certification has been made, as last reported by the commissioner to the general court pursuant to section ten C of chapter fifty-eight as updated by the commissioner for any intervening period by an appropriate factor, if any.

"Local appropriating authority", in a town, the board of selectmen; in a city, the council, with the mayor's approval when required by law; in a municipality having a town council form of government, the town council.

"Total taxes assessed", the net amount to be raised by any ad valorem tax levied on the real estate and personal property located within a city or town.

(b) The total taxes assessed within any city or town under the provisions of this chapter shall not exceed two and one-half per cent of the full and fair cash valuation in said city or town in any fiscal year. Any city or town in which total taxes exceed this limit shall be subject to the provisions of paragraph (d).

[There is no paragraph (c).]

(d) Any city or town in which total taxes assessed exceed the limits set forth in paragraph (b) shall for each successive year until the total taxes assessed shall not exceed said limits, reduce the total taxes assessed by not less than fifteen per cent of the total taxes assessed for the year immediately preceding; provided, however, that the reduction pursuant to this paragraph shall not be so great as to require a reduction below the limits set forth in paragraph (b); and provided, further, that said reduction may be adjusted by those amounts approved in accordance with the applicable provisions of paragraph (e).

(e) The local appropriating authority of any city or town which is subject to the provisions of paragraph (d) may, by a two-thirds vote, seek voter approval to assess taxes in excess of the amount allowed pursuant to said paragraph (d) by a specified amount. Any question submitted to the voters shall be worded as follows:—

"Shall the (city/town) of ____ be allowed to assess an additional \$____ in real estate and personal property taxes for the fiscal year beginning July first, nineteen hundred and ____?

YES ____ NO ____".

If the amount specified in such question is not greater than one-half of the reduction required pursuant to said paragraph (d), the proposal shall be deemed approved if a majority of the persons voting thereon shall vote "yes". If the amount specified is greater than one-half of the reduction required pursuant to said paragraph (d), the proposal shall be deemed approved if two-thirds of the persons voting thereon shall vote "yes".

In no event shall the amount specified be greater than the reduction required pursuant to said paragraph (d).

The local appropriating authority may, by a two-thirds vote, submit two questions on the same ballot; provided that only one question shall specify an amount which is greater than one-half of the reduction required pursuant to paragraph (d). If both questions are approved by the required number of voters, then the question which requires a two-thirds vote shall apply.

(f) in any city or town in which the total taxes assessed result in a percentage which is less than or equal to the limits imposed pursuant to paragraph (b), the total taxes assessed for any fiscal year shall not exceed an amount

equal to one hundred and two and one-half per cent of the maximum levy limit for the preceding fiscal year as determined by the commissioner of revenue; provided, however, that the total taxes assessed may be further increased by those amounts approved in accordance with the provisions of paragraph (g); and provided further, that the total amount of taxes assessed for the then current fiscal year may be increased by an amount equal to the tax rate for the preceding fiscal year multiplied by the amount of increase in the assessed valuation of any parcel of real, or article of personal property over the assessed valuation of such property during the prior year which shall become subject to taxation for the first time, or taxed as a separate parcel for the first time during such fiscal year, or which has had an increase in its assessed valuation over the prior year's valuation unless such increased assessed valuation is due to revaluation of the entire city or town.

(g) The local appropriating authority of any city or town which is subject to the provisions of paragraph (f) may, by majority vote, seek voter approval to assess taxes in excess of amount allowed pursuant to said paragraph (f) by a specified amount.

Any question submitted to the voters shall be worded as follows:—

"Shall the (city/town) of ____ be allowed to assess an additional \$____ in real estate and personal property taxes for the purposes of (state the purpose(s) for which the monies from this assessment will be used) for the fiscal year beginning July first, nineteen hundred and ____?

YES ____ NO ____"

Said question shall be deemed approved if a majority of the persons voting thereon shall vote "yes".

If a question as aforesaid shall provide for assessing taxes for the purpose of funding a stabilization fund established pursuant to section 5B of chapter 40, the assessors shall in each successive fiscal year assess property taxes for the same purpose in an amount equal to 102.5 per cent of the amount assessed in the next preceding year in which additional taxes were assessed for such purpose, but only if the local appropriating authority votes by a 2/3 vote to appropriate such increased amount in such year for such purpose. The voters of the city or town, by majority vote at a referendum, may alter the purpose of a stabilization fund or authorize the assessment of such additional property taxes for another purpose. In any year in which the local appropriating authority does not vote to appropriate such amount as aforesaid, the total property tax levy for such year shall be reduced by the amount that could otherwise have been assessed, so that such additional taxes may not be assessed for any other purpose. The maximum levy limit under paragraph (f) shall not be affected by any such reduction in the levy for such year.

(h) In a city or town, if a majority of the local appropriating authority or the people by local initiative procedure shall so require, there shall be a special election called in order to submit a question to the voters as to whether said city or town should be required to assess taxes by a specified amount below that amount allowed pursuant to this section. The question submitted to the voters shall be worded as follows:—

"Shall the (city/town) of ____ be required to reduce the amount of real estate and personal property taxes to be assessed for the fiscal year beginning July first, nineteen hundred and ____ by an amount equal to \$____?

YES ____ NO ____".

If a majority of the persons voting on the question shall vote "yes", the limit on total taxes assessed shall be decreased to the percentage so voted for that fiscal year.

(i) With regard to the referenda procedures set out in this section the local appropriating authority may direct that the questions be placed upon the official ballot at a regular city or town election or at a special election which the local appropriating authority may call at any time. The local appropriating authority may also direct that not more than three such questions be placed upon the official ballots for use in the city or town at a biennial state election, by filing with the state secretary not later than the first Wednesday of August preceding that election a copy of its vote attested by the city or town clerk.

(i1/2) The local appropriating authority of any city or town may, by a two-thirds vote, seek voter approval to assess taxes in excess of the levy limitation for certain capital outlay expenditures. Amounts for such capital outlay expenditures or for the city's or town's apportioned share for certain capital outlay expenditures by a regional governmental unit shall be assessed only after approval by a separate vote of the people taken at a regular or special election held before the setting of the annual tax rate; provided, however, that the question submitted shall be worded as follows: "Shall the (city/town) of ____ be allowed to assess an additional \$____ in real estate and personal property taxes for the purposes of (state the purpose(s) for which the monies from this assessment will be used) for the fiscal year beginning July first, two thousand and ____?

Yes ____ No ____";

and provided, further, that said question shall be deemed approved if a majority of the persons voting thereon shall vote "yes".

Capital outlay expenditures may be authorized for any municipal purpose for which the city or town would be authorized to borrow money under section seven or eight of chapter forty-four.

(j) The local appropriating authority of any city or town may, by a two-thirds vote, seek voter approval at a regular or special election to assess taxes in excess of the amount allowed pursuant to this section for the payment of principal and interest on bonds, notes or certificates of indebtedness, excluding tax revenue anticipation notes, issued by the city or town and for the city's or town's apportioned share of the principal and interest on such bonds or notes issued by a regional governmental unit which were outstanding as of November fourth, nineteen hundred and eighty; provided, however, that the question submitted shall be as follows:—

"Shall the (city/town) of ____ be allowed to exempt the total amounts required to pay for bonded indebtedness incurred prior to the passage of proposition two and one-half, so-called, from the (city's/town's) limit?

Yes ____ No ____";

and provided, further, that said question shall be deemed approved if a majority of the persons voting thereon shall vote "yes".

(k) The local appropriating authority of any city or town may, by two-thirds vote, seek voter approval at a regular or special election to assess taxes in excess of the amount allowed pursuant to this section for the payment of principal and interest on bonds, notes or certificates of indebtedness, excluding tax revenue anticipation notes, issued by the city or town and for the city's or town's apportioned share of the principal and interest on such bonds or notes issued by a regional governmental unit which were not outstanding as of November fourth, nineteen hundred and eighty; provided, however, that the question submitted shall be as follows:—

"Shall the (city/town) of ____ be allowed to exempt from the provisions of proposition two and one-half, so-called, the amounts required to pay for the bond issued in order to (state the purpose or purposes for which the monies from the local issue will be used)?

Yes ____ No ____";

and provided, further, that said question shall be deemed approved if a majority of the persons voting thereon shall vote "yes".

(l) Amounts exempted from the tax limit under paragraph (i1/2), (j), (k) or (n) shall not be included in calculating the "total taxes assessed" in paragraph (a) or the maximum levy limit in paragraph (f).

(m) A town may appropriate from the tax levy, from available funds, or from borrowing, contingent on the passage of a ballot question under paragraph (g), (i1/2) or (k), but: (1) the statement of the purpose of the appropriation shall be substantially the same as the statement of purpose in the ballot question; (2) the appropriation vote shall not be deemed to take effect until the approval of the ballot question; (3) no election at which the question appears on the ballot shall take place later than the September 15 following the date of an

appropriation vote adopted at an annual town meeting, or 90 days after the date of the close of any other town meeting at which an appropriation vote was adopted; and (4) after a contingent appropriation from the tax levy, a tax rate for a town shall not be submitted for certification by the commissioner under section 23 until after a ballot question under paragraph (g), (i1/2) or (k) has been voted upon, or until the expiration of the time for holding an election at which the question appears on the ballot, whichever period is shorter.

(n) The local appropriating authority may, by accepting this paragraph, provide that taxes may thereafter be assessed in excess of the amount otherwise allowed by this section, solely for payment, in whole or in part, of water or sewer debt service charges, including debt service charges of an independent commission, authority or district and as part of any wholesale water and sewer charges, that the board or officer responsible for determining the water and sewer charges certifies were not in fiscal year nineteen hundred and ninety-three paid by local taxes; provided, however, that water and sewer charges shall be reduced by the amount of any such aggregate additional taxes assessed; and provided, further, that said additional taxes may be assessed on only residential real property as defined in section two A, notwithstanding the failure of the city or town to adopt a residential factor pursuant to section fifty-six of chapter forty, but subject to any subsequent adoption of such residential factor allowed by said section fifty-six; and provided, further, that if said additional taxes are assessed only on residential real property, aggregate residential water and sewer charges shall be reduced by the amount of any such additional taxes assessed. In the case of a city or town whose water and sewer service is provided by an independent commission, authority or district which separately bills water and sewer users, said commission, authority or district may enter into an agreement with said city or town to effectuate the purposes of this paragraph, provided, however, that immediately upon collection of all such taxes assessed for payment of such residential water and sewer debt service charges of such commission, authority or district, the treasurer or collector of taxes of such city or town shall, without appropriation by such city or town, pay over the taxes so collected to such commission, authority or district less any amounts agreed upon to provide reasonable compensation to the city or town for costs incurred in carrying out the agreement. Notwithstanding the provisions of chapter twenty-nine C, chapter two hundred and seventy-five of the acts of nineteen hundred and eighty-nine, or any other general or special law to the contrary, any city or town which accepts this paragraph or any independent authority, commission or district which provides water or sewer services to such city or town shall remain eligible to receive loans and grants for water pollution abatement projects or safe drinking water projects.

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